

5.	30-2023-01321234-CU-FR-CJC Wang vs. Liu	Before the Court is a Motion for Terminating Sanctions brought by Plaintiffs Xiuming Wang, Shihong Wu, and Shangtu Automobile Group (USA) Co. ("Plaintiffs") against Defendant Qingwu Liu ("Defendant"). ROA 220. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions by striking Defendant's Answer and entering default for Plaintiff, in addition to the imposition of monetary sanctions for discovery misuse in the amount of \$6,000, representing the fees and costs incurred in bringing their motions to compel (ROAs 199, 201, 202, 215) and the herein motion. ROA 220, pp. 1, 8, 11. Discretionary Sanctions for Misuse of the Discovery Process "California discovery law authorizes a range of penalties, including monetary, issue, evidence, and terminating sanctions, for conduct amounting to 'misuse of the discovery process.'" <i>Doppes v. Bentley Motors, Inc.</i>, 174 Cal. App. 4th 967, 991 (2009); Cal. Civ. Proc. Code §§ 2023.030(b)-(d), 2030.290(c), 2031.300(c). "The trial court has broad discretion in selecting discovery sanctions, subject to reversal only for abuse. <i>Doppes, supra</i>, 174 Cal. App. 4th at 992 (citing <i>Reedy v. Bussell</i>, 148 Cal. App. 4th 1272, 1294 (2007)). In choosing a sanction, "[t]he trial court should consider both the conduct being sanctioned and its effect on the party seeking discovery." <i>Doppes, supra</i>, 174 Cal. App. 4th at 992. Under California Code of Civil Procedure Section 2023.030,

		courts may impose terminating sanctions by way of striking all or parts of the pleadings, staying proceedings by the offending party until the court's discovery orders are obeyed, dismissing all or part of the offender's action, or rendering a judgment by default against the offending party. Cal. Civ. Proc. Code § 2023.030(d). "The courts have long recognized that the terminating sanction is a drastic penalty and should be used sparingly." <i>Lopez v. Watchtower Bible and Tract Soc'y of N.Y.</i>, 246 Cal. App. 4th 566, 604 (2016). Proportionality is critical when it comes to terminating sanctions because they altogether deny the non-compliant party a hearing on the merits and thus implicate due process. <i>Id.</i> To ensure proportionality, trial courts should generally take an "incremental" approach—that is, they should "attempt[] less severe alternative[] [sanctions]" <i>unless</i> the "record clearly shows lesser sanctions would be ineffective." <i>Id.</i> at 604 (emphasis added). While a decision to order terminating sanctions should not be made lightly, "where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." <i>Mileikowsky v. Tenet Healthsystem</i>, 128 Cal. App. 4th 262, 279-280 (2005). Under this standard, trial courts have properly imposed terminating sanctions when parties have willfully disobeyed even <i>just one</i> discovery order. See <i>Lang v. Hochman</i>, 77 Cal. App. 4th 1225, 1244 (2000) (citing <i>Collisson & Kaplan v. Hartunian</i>, 21 Cal. App. 4th 1611 (1994)). "Only two facts are absolutely prerequisite to imposition of the [nonmonetary] sanction: (1) there must be a failure to comply . . . and (2) the failure must be willful." <i>Calvert Fire Ins. Co. v. Cropper</i>, 141 Cal. App. 3d 901, 904 (1983). Willfulness in the context of nonmonetary sanctions means a "conscious or intentional failure to act, as distinguished from accidental or involuntary noncompliance . . ." <i>Deyo v. Kilbourne</i>, 84 Cal. App. 3d 771, 787-788 (1978). "Lack of
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		diligence may be deemed willful in the sense that the party understood his obligation, had the ability to comply, and failed to comply.” <i>Deyo, supra</i>, 84 Cal. App. 3d at p. 787. <i>See Housing Auth. v. Gomez</i>, 26 Cal. App. 3d 366, 372-73 (1972) (stating that a court may “justifiably conclude that [a party] ha[s] no intention of being deposed and would continue to engage in evasive tactics to achieve that end” where the party has already failed to appear for deposition and respond to discovery requests, including by disobeying a court order to do so). Here, on March 25, 2026, acting on Plaintiff’s Motion to Compel Defendant’s Attendance at Deposition and Production of Documents (ROA 187), the Court ordered the parties to attend an Informal Discovery Conference (“IDC”), facilitated by the Court, on April 15, 2026. ROA 192. On April 15, 2026, Defendant failed to appear for IDC, as ordered. ROA 195. Consequently, the Court granted Plaintiff’s motion and ordered Defendant to appear for deposition within fourteen (14) days. <i>Id.</i> Additionally, the Court imposed monetary discovery sanctions upon Defendant in the amount of \$2,000.00, due and payable to Plaintiff’s counsel, Farnell & Norman, within thirty (30) days. <i>Id.</i> Defendant <i>again</i> failed to appear for Plaintiff’s properly noticed deposition and has failed to pay the court-ordered sanctions. ROA 220, Decl. of Ronald Norman, ¶ 6. Additionally, on May 13, 2026, acting on Plaintiff’s Motions to Compel Initial Responses (ROAs 199, 201, 202, 215), the Court ordered Defendant to provide verified, code compliant responses to Plaintiff’s written discovery demands by no later than June 3, 2026. ROA 226. Defendant <i>again</i> did not comply with the Court’s order. ROA 235, Decl. of Ronald Norman ¶ 6. Pursuant to the foregoing, the Court finds the record shows, unequivocally, that Defendant has failed to comply with multiple of this Court’s orders. Further, as Defendant provides no facts to the contrary, the Court finds that
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		Defendant's noncompliance has been willful. The Court has imposed lesser sanctions upon Defendant in the hopes of compelling compliance, to no avail. Thus, the Court is convinced that less severe sanctions will not compel compliance and that terminating sanctions are appropriate. It is this Court's determination, however, that the imposition of additional monetary sanctions would be disproportionate and futile. Accordingly, Plaintiff's Motion for terminating sanctions is GRANTED, and Defendant's Answer (ROA 17) is STRICKEN as to Defendant only. Plaintiff is ORDERED to proceed by way of default pursuant to California Code of Civil Procedure Section 585. The Court orders Clerk to give notice.
6.	30-2025-01500136-CU-BC-CJC Barr vs. Elite Beverage International Inc.	No tentative.
7.	30-2026-01552454-CU-FR-CJC Canyon Crossing LLC vs. Udoffia	Before the Court are two (2) Motions for Terminating Sanctions brought by Plaintiff Canyon Crossing LLC ("Plaintiff"), one against Defendant Enoch Stephen Udoffia ("Enoh U.") and one against Defendant Erica Yvonne Udoffia ("Erica U.") (collectively, "Defendants"). ROAs 24, 38. Plaintiff brings these motions based on Defendants' alleged spoliation of evidence. <i>Id.</i> Plaintiff seeks an order, pursuant to California Code of Civil Procedure Sections 2023.010 and 2023.030, imposing terminating sanctions by striking Enoch U's Answer, and imposing monetary sanctions in the amount of \$7,760 upon both Enoch U. and his counsel of record, Greenacre Law,